

## **DOCUMENT TITLE: Article 21, Constitution of India**

**COURT:** Constituent Assembly of India / Constitutional Law

**CITATION:** Constitution of India, Part III, Article 21

**BENCH:** Constitutional Guarantee

**DATE OF JUDGMENT:** 1950-01-26

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### **[Article 21]**

Protection of life and personal liberty:

No person shall be deprived of his life or personal liberty except according to procedure established by law.

### **[Constitutional Jurisprudence]**

In *Maneka Gandhi v. Union of India* (1978) 1 SCC 248, the Supreme Court ruled that the 'procedure established by law' under Article 21 must be right, just, and fair, and not arbitrary, fanciful, or oppressive. A procedure that deprives an individual of their personal liberty through unjust or mechanical arrest violates the core guarantee of Article 21.

Anticipatory bail under Section 438 of the Code of Criminal Procedure is intrinsically linked to Article 21. As observed in *Gurbaksh Singh Sibbia* and affirmed in *Sushila Aggarwal*, the judicial discretion to grant pre-arrest bail protects innocent citizens from the irreparable trauma, stigmatization, and indignity of unwarranted incarceration pending trial.